

INTELLECTUAL PROPERTY LAW

Paper-V | 4th Semester | LL.B. (3-YDC)

Osmania University | Faculty of Law

UNIT I

Introduction to Intellectual Property

Comprehensive Exam Preparation Notes

Target: 75+ Marks | Parts A, B & C

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UNIT I — OVERVIEW & EXAM INTELLIGENCE

What IS in This Unit

- Concept, meaning, nature & classification of Intellectual Property
- Significance and need for IP protection
- Conventional forms: Patents, Trademarks, Industrial Designs, GI, Copyright
- Emerging forms: Plant Varieties, GRTK, Integrated Circuit Layouts, AI & Computer Programmes

What is NOT in This Unit

- International treaties and conventions → Unit II
- Copyright Act 1957 in detail → Unit III
- Trade Marks Act 1999 → Unit IV
- Patents Act 1970 procedure → Unit V

★ Predicted Questions (Based on Past Papers)

Topic	Part	Rating
Geographical Indication	Part A	★★★★★
IPR in Biotechnology / Plant Varieties	Part A	★★★★★
Computer Programmes & AI and IP	Part A	★★★★★
Integrated Circuit Layout Designs	Part A	★★★★
Importance of IP / Forms of IPR (Essay)	Part B	★★★★★
Emerging vs Conventional IP (Essay)	Part B	★★★★★
Plant Variety / Biotechnology (Problem)	Part C	★★★★★
Geographical Indication of obscene matter	Part C	★★★★

1234 Critical Numbers to Memorise

- Paris Convention — 1883 (Industrial Property)
- Berne Convention — 1886 (Literary/Artistic)
- TRIPS Agreement — 1994
- Copyright Act — 1957 (India)
- Trade Marks Act — 1999 (India)
- Patents Act — 1970 (India)
- Designs Act — 2000 (India)
- Protection of Plant Varieties Act — 2001 (India)
- Semiconductor Integrated Circuits Layout-Design Act — 2000 (India)

PART A — SHORT NOTES (6 Marks Each)

Write any FIVE out of EIGHT questions. Each answer: ~200–250 words. Time: 5–7 min each.

A1. Meaning, Nature & Classification of Intellectual Property ★★★★★

Definition: Intellectual Property (IP) refers to creations of the human mind — inventions, literary and artistic works, symbols, names, images, and designs — used in commerce. It grants creators exclusive rights over their creations for a specified period.

Key Points:

- IP is intangible — exists in the mind, not as a physical object
- Grants monopoly rights that are territorial and time-limited
- Protected by national laws and international treaties (TRIPS, WIPO)
- Balances private creator interest vs. public domain access
- Classified into two broad categories: Industrial Property and Copyright

Classification of IP:

Industrial Property	Copyright & Neighbouring Rights
• Patents • Trade Marks • Industrial Designs • Geographical Indications	• Literary & Artistic Works • Music, Films, Software • Neighbouring Rights (performers, broadcasters)

📌 Example: A pharmaceutical company's drug formula is protected as a Patent (industrial property); its advertising jingle is protected by Copyright.

⚖️ *Monsanto Technology LLC v. Nuziveedu Seeds Ltd. (2019)* — SC India: discussed overlap between patent protection and plant variety rights, highlighting IP classification boundaries.

💡 **TIP:** Mnemonic for IP forms: 'PCT-GC' = Patents, Copyright, Trademarks, GI, Copyright-related (Neighbouring). Add Emerging: 'BIGAPC' = Biotechnology, Integrated Circuits, Genetic Resources, AI, Plant Varieties, Computer Programmes.

A2. Significance & Growing Need for IP Protection ★★★★★☆

Definition: The significance of IP protection lies in incentivising human creativity, enabling innovation-driven economies, protecting consumer interests, and ensuring equitable sharing of knowledge — particularly in the digital and biotechnology era.

Key Points:

- Encourages R&D by granting temporary monopoly → commercial reward
- Promotes disclosure of inventions (patent system) → public knowledge
- Protects cultural heritage and traditional communities (GRTK)
- Prevents misappropriation, counterfeit goods, and piracy

- International trade requires harmonised IP standards (TRIPS)
- Digital economy creates new vulnerabilities → need for updated IP laws

KEY PRINCIPLE: IP law strikes a balance between the creator's exclusive rights and the public's interest in access to knowledge and innovation.

📌 Example: India's pharmaceutical industry thrives by producing generic medicines; the Doha Declaration (2001) under TRIPS recognised that IP rules should not prevent access to medicines in public health emergencies.

⚖️ *Novartis AG v. Union of India (2013) SC — Rejected patent for Gleevec (Section 3(d) Patents Act): affirmed India's policy to balance innovation incentives with public health needs.*

💡 **TIP:** For 'significance' questions, use the acronym **RECIPE**: Reward creators, Encourage disclosure, Consumer protection, Incentivise innovation, Preserve culture, Economic growth.

A3. Geographical Indication (GI) ★★★★★

Definition: A Geographical Indication (GI) is a sign used on products that have a specific geographical origin and possess qualities, reputation, or characteristics essentially attributable to that place of origin. Governed in India by the Geographical Indications of Goods (Registration & Protection) Act, 1999.

Key Points:

- GI links a product's quality/reputation to its geographic origin
- Both natural and human factors of the region contribute to the product
- Registered GI prevents others outside the region from using the name commercially
- Duration: 10 years, renewable indefinitely
- Governed internationally by TRIPS Agreement (Articles 22–24)
- India: Registered under GI Act 1999; first GI tag given to Darjeeling Tea (2004)

CRITICAL RULE: A GI is a collective right — it belongs to the producers of a region, not to any individual. This distinguishes it from a trade mark (which can be owned individually).

📌 Example: Darjeeling Tea, Basmati Rice, Mysore Silk, Pochampally Ikat (Telangana), Tirupati Laddu, Hyderabad Haleem — all hold GI tags in India.

⚖️ *Scotch Whisky Association v. Golden Bottling Ltd. (2006) Delhi HC — Held that 'Scotch' GI cannot be used for Indian whisky; reinforced geographic link essential for GI protection.*

💡 **TIP:** Distinguish GI from Trade Mark: GI = collective, origin-linked, indefinitely renewable; TM = individual/company, brand-linked, 10 years renewable. Exam trap: Can a GI become a trademark? NO — if a name becomes generic, it loses GI protection.

A4. IPR in Biotechnology & Plant Varieties Protection ★★★★★

Definition: IPR in Biotechnology covers the protection of innovations arising from living organisms, genetic sequences, microorganisms, and plant varieties through patents, plant variety rights, and trade secrets. In India, plant varieties are protected under the Protection of Plant Varieties and Farmers' Rights Act, 2001 (PPVFR Act).

Key Points:

- Biotechnology IP straddles patent law and specialised protection regimes
- Micro-organisms can be patented if they are novel, non-obvious, and useful
- *Diamond v. Chakrabarty* (US, 1980): landmark — 'anything under the sun made by man' is patentable
- India: Section 3(j) Patents Act — plants, animals, essentially biological processes NOT patentable
- PPVFR Act 2001: protects new, distinct, uniform, stable (NDUS) plant varieties
- Farmers' Rights: farmers can save, use, sow seeds of protected varieties
- Breeders' Rights: commercial monopoly over registered plant varieties for 15–18 years

KEY TEST (Plant Variety): NDUS — New, Distinct, Uniform, Stable. ALL FOUR criteria must be satisfied.

🔴 Example: A biotech company engineers a drought-resistant wheat variety → can register under PPVFR Act 2001 but CANNOT get a patent in India (Section 3(j) bars it).

⚖️ *Monsanto Technology v. Nuziveedu Seeds (2018) SC — Bt Cotton case: held that plant varieties cannot be patented in India; PPVFR Act governs; farmers' rights protected.*

💡 TIP: Exam tip: In a problem question, if a scientist develops a new plant variety → advise PPVFR Act 2001 (not Patents Act). If it involves a genetically engineered micro-organism → could be patentable under Patents Act (if not a plant/animal).

A5. Genetic Resources, Traditional Knowledge & Folklore (GRTK) ★★★★★

Definition: GRTK refers to knowledge, innovations, and practices of indigenous and local communities embodying traditional lifestyles relevant to conservation of biological diversity. It is an emerging IP form designed to protect communities from bio-piracy and cultural appropriation.

Key Points:

- Traditional Knowledge (TK): medicinal plants, healing practices, farming techniques passed across generations
- Genetic Resources: biological material from plants, animals, microorganisms with genetic value
- Folklore: cultural expressions — music, dance, art, stories of communities
- Problem: TK exists in the public domain but communities don't benefit commercially
- Bio-piracy: corporations patent TK-based inventions (e.g., Turmeric, Neem controversies)
- India's response: Traditional Knowledge Digital Library (TKDL) — prior art database to block bio-piracy patents
- International: CBD (Convention on Biological Diversity, 1992) and Nagoya Protocol (2010)

INDIA'S WEAPON AGAINST BIO-PIRACY: TKDL (Traditional Knowledge Digital Library) — documents 900+ traditional formulations in multiple languages to be used as prior art in patent offices worldwide.

🔴 Example: US Patent Office granted a patent on wound-healing properties of Turmeric in 1995. India challenged this citing ancient Sanskrit texts — the patent was REVOKED in 1997. This is a landmark TKDL success story.

⚖️ *Re: Neem Patent Controversy (EPO, 2000) — European Patent Office revoked a patent on Neem-based fungicide after India proved it was prior art documented in traditional knowledge.*

💡 TIP: Remember the difference: TK = knowledge (how to use neem), GR = the genetic material itself (neem genes), Folklore = cultural expression (folk songs about neem). All three form GRTK.

A6. Integrated Circuit Layout Designs ★★★★★

Definition: An Integrated Circuit (IC) is a miniaturised electronic circuit embedded on a semiconductor material (chip). Layout-design (topography) refers to the three-dimensional disposition of circuit elements. Protected in India under the Semiconductor Integrated Circuits Layout-Design Act, 2000 (SICLD Act).

Key Points:

- Protection covers the three-dimensional arrangement of circuit elements on a chip
- Must be original — result of creator's intellectual effort, not commonplace
- Duration of protection: 10 years from date of filing or first commercial exploitation
- Governed by IPIC Treaty (Washington Treaty, 1989) — implemented in India via SICLD Act 2000
- Owner's exclusive rights: reproduction, importation, sale or distribution for commercial purposes
- Exception: Reverse engineering for private or educational purpose is allowed

KEY DISTINCTION: A layout design protects the **STRUCTURE** (3D arrangement) of a chip, **NOT** the functioning of the chip (which may be covered by patent) or the chip design drawing (which may be covered by copyright).

📌 Example: Intel's proprietary chip architecture, the 3-nanometer circuit layout for iPhone processors — these are protected as IC layout designs.

⚖️ *SIPEX Corporation v. Analogic Corporation (US)* — laid down principle that reverse engineering of semiconductor chips for study is permitted, but commercial reproduction is not.

💡 **TIP:** Remember '2000' — both SICLD Act AND Designs Act were enacted in 2000. Don't confuse them. IC Layout = semiconductor chips; Designs Act = aesthetic/industrial product shapes.

A7. Computer Programmes, Artificial Intelligence & IP ★★★★★

Definition: Computer programmes are sets of instructions enabling a computer to perform tasks. Under India's Copyright Act 1957, computer programmes are protected as 'literary works'. AI refers to machine-based systems simulating human intelligence — raising novel questions about IP ownership when AI creates independently.

Key Points (Computer Programmes):

- India: Computer programmes protected as 'literary works' under Copyright Act 1957 (Section 2(ffc))
- Source code and object code both protected
- Duration: Lifetime of author + 60 years
- NOT patentable per se (Section 3(k) Patents Act) — unless it has a 'technical effect'
- Trade secrets and confidentiality protect proprietary algorithms

Key Points (AI & IP):

- AI-generated works: WIPO acknowledges challenge — who owns AI output?
- Current law: Only a HUMAN author can hold copyright (no IP rights for AI itself)
- AI as tool: If human guides AI output → human author has copyright

- AI as inventor: EPO and UK courts rejected AI-named patents (DABUS AI case, 2021)
- India: No specific law yet for AI-generated IP — evolving area

 **RULE:** In ALL current jurisdictions, AI CANNOT own IP. Rights vest in the human creator/employer who uses AI as a tool. AI authorship = no protection.

 Example: Midjourney AI generates a painting. The user who created the prompt holds copyright (if sufficiently creative input). The AI itself holds NOTHING.

🏛️ Thaler v. Vidal (Fed. Cir. USA, 2022) — Court held that 'inventor' under patent law must be a natural person; AI (DABUS) cannot be named as inventor.

 *TIP: Exam angle: If a question says 'AI wrote a book' or 'AI invented a device' → say current law does NOT recognise AI as IP owner. Rights vest in the human behind the AI.*

PART B — LONG ESSAYS (15 Marks Each)

Answer any TWO of FOUR questions. Each answer: ~600–750 words. Time: 20–25 min each.

B1. Examine the Growing Importance of IP Laws & Explain Forms of IPR

Introduction

Intellectual Property (IP) has emerged as one of the most significant assets in the 21st century knowledge-driven economy. As nations shift from manufacturing-based to innovation-based growth, the protection of intangible creations — inventions, brands, artistic works, and biological innovations — has become indispensable. The World Intellectual Property Organization (WIPO) estimates that IP-intensive industries account for over 45% of GDP and 40% of employment in developed economies.

1. Growing Importance of IP Protection

- Innovation Economy: Patents protect R&D investments; without exclusivity, pharmaceutical companies cannot recoup billion-dollar drug development costs
- Digital Revolution: Internet piracy, software theft, and digital counterfeiting make IP enforcement more critical than ever
- Global Trade: TRIPS Agreement (1994) mandated minimum IP standards for all WTO members — IP is now a prerequisite of global commerce
- Cultural Preservation: Copyright and GRTK protections preserve national heritage from exploitation
- SME Growth: Trademarks and designs help small enterprises build brand identity and compete globally
- Public Interest Balance: IP laws create incentives while ensuring eventual public access through limited-term monopolies

 **FOUNDATIONAL PRINCIPLE (TRIPS Preamble):** IP protection must contribute to promotion of technological innovation and the transfer and dissemination of technology, for the mutual advantage of producers and users.

2. Conventional Forms of Intellectual Property

(a) Patents

A patent is an exclusive right granted for an invention — a new, inventive, and industrially applicable product or process. Term: 20 years. Governed in India by Patents Act, 1970. Disclosure is mandatory in exchange for protection. Key principle: teaches the public while rewarding the inventor.

(b) Trade Marks

A trade mark is a sign distinguishing the goods/services of one trader from another. Includes words, logos, sounds, colours. Term: 10 years, infinitely renewable. Governed by Trade Marks Act, 1999. Functions: origin function, quality guarantee, advertising function.

(c) Industrial Designs

Protects the visual/aesthetic features of a product — shape, configuration, pattern, ornamentation. Must be new and original. Term: 10 years (renewable once for 5 years). Governed by Designs Act, 2000.

(d) Geographical Indications

GI tags protect products whose quality/reputation is linked to their place of origin (e.g., Darjeeling Tea,

Basmati Rice). Governed by GI Act, 1999. Term: 10 years, infinitely renewable. Collective right, not individual.

(e) Copyright & Neighbouring Rights

Copyright protects original literary, dramatic, musical, artistic works, and software. No registration required — arises automatically on creation. Term: Author's life + 60 years. Neighbouring rights protect performers, producers, and broadcasters. Governed by Copyright Act, 1957.

3. Emerging Forms of Intellectual Property

(a) Plant Varieties & Biotechnology

PPVFR Act, 2001 protects new plant varieties (NDUS criteria). Biotechnological innovations involving microorganisms may be patented. India's Section 3(j) Patents Act excludes essentially biological processes and plant/animal varieties from patents.

(b) GRTK — Genetic Resources, Traditional Knowledge & Folklore

Emerging framework protects indigenous community knowledge from bio-piracy. India's TKDL database and the Nagoya Protocol (CBD, 2010) are key instruments. Famous example: Turmeric patent revoked (1997) upon India's challenge.

(c) Integrated Circuit Layout Designs

SICLD Act, 2000 protects the three-dimensional layout of semiconductor chips for 10 years. Implements IPIC Treaty (1989).

(d) Computer Programmes & AI

Software protected as literary work under Copyright Act. AI-generated works currently have no IP owner under any jurisdiction — rights vest only in human creators.

§§ *Novartis AG v. Union of India (2013)*: SC upheld public health policy override of patent rights under Section 3(d).

§§ *Monsanto v. Nuziveedu (2018)*: SC confirmed plant varieties fall under PPVFR Act, not Patents Act.

§§ *Re: Turmeric Patent (USPTO, 1997)*: Revocation of patent on traditional wound healing use of turmeric — GRTK victory.

Conclusion

IP law today serves as the backbone of the knowledge economy. India's IP framework — anchored in constitutional guarantees of creative freedom and informed by international obligations under TRIPS, WIPO Conventions, and the CBD — has evolved to protect both conventional and emerging forms of creative expression and innovation. The challenge for the 21st century is to ensure that IP protection incentivises creativity while preserving access to knowledge for all.

■ **LINKING TO CONSTITUTION:** Article 19(1)(a) (freedom of expression — copyright), Article 300A (property rights — patents/trademarks), and the Directive Principles (Articles 39, 47) balance private IP monopolies with public interest.

B2. Discuss Importance of Protecting Both Traditional and Emerging Forms of IP; How Do They Differ from Conventional IP Rights?

Introduction

The landscape of Intellectual Property is no longer confined to patents, trademarks, and copyrights. The 21st century has witnessed the emergence of entirely new categories of protectable subject matter —

plant varieties, genetic resources, traditional knowledge, folklore, AI-generated works, semiconductor layout designs, and computer programmes. These emerging forms present unique challenges to conventional IP frameworks, which were designed for individual creators and commercial enterprises, not communities or machines.

1. Conventional vs. Emerging IP — The Core Difference

Feature	Conventional IP	Emerging IP
Creator	Individual/Company	Community/AI/Machine
Duration	Fixed term (10–20 yrs)	Varies / indefinite (GI, GRTK)
Registration	Required (Patents, TM)	Optional (Copyright, GRTK)
Nature	Commercial/industrial	Cultural/community/technical
Legal basis	TRIPS, national statutes	CBD, PPVFR, SICLD, evolving

2. Importance of Protecting Traditional IP (GRTK)

- Prevents bio-piracy — corporations cannot monopolise community knowledge through patents
- Preserves indigenous identity and livelihood of millions dependent on traditional practices
- India's TKDL: 34 million pages of traditional formulations documented — used to block 200+ bio-piracy patents worldwide
- Nagoya Protocol (2010): Mandates benefit-sharing with communities when their genetic resources are used commercially

⚖️ *Re: Turmeric Patent (1997) — US patent for wound-healing turmeric revoked; India provided prior art.*

⚖️ *Re: Neem Patent (EPO, 2000) — European patent on neem fungicide revoked after community challenge.*

🟡 GRTK protection addresses a fundamental inequity: communities who developed knowledge over centuries receive NO benefit when corporations patent it. IP law must correct this historic injustice.

3. Importance of Protecting Emerging IP (AI, IC Layouts, Software)

- Semiconductor chips are the foundation of the modern digital economy — IC layout protection incentivises chip R&D
- Software/computer programmes drive trillions in economic value — copyright protection enables the software industry
- AI-generated content is now commercially valuable — legal clarity on ownership is urgently needed
- Without emerging IP protection, free-rider problems discourage innovation in cutting-edge fields

⚖️ *Thaler v. Vidal (USA, 2022) — AI cannot be named as inventor; rights vest in human programmers.*

4. Challenges in Protecting Emerging IP

- GRTK: Communities rarely have resources to register or enforce IP globally
- AI: No current law recognises AI authorship — creates ownership vacuum
- Software: Fine line between patentable technical effect and non-patentable software per se
- Biotechnology: Ethical concerns about patenting life forms clash with innovation incentives

Conclusion

The protection of both traditional and emerging IP forms is not merely a legal formality — it is a matter of justice, economic equity, and technological progress. India, as a biodiversity-rich nation with millennia of traditional knowledge and a growing digital economy, has a special stake in evolving IP law that serves all stakeholders — from tribal communities preserving ancient healing traditions to software engineers building the next generation of AI tools. The international framework, anchored in TRIPS, the CBD, and WIPO, must continue to adapt to protect what humans — individually and collectively — create.

🏆 PART C — PROBLEM QUESTIONS / IRAC METHOD (10 Marks Each)

Answer any *TWO* of *FOUR* problems. Use strict IRAC format. Time: 15 min each.

C1. Problem: Biotechnologist Developing Drought-Tolerant Wheat — What IP Protection?

(Based on July/August 2025, Q13: 'R', a biotechnologist, develops a drought-tolerant wheat variety with improved nutritional value. He seeks exclusive rights. Advise him.)

I — ISSUE

What form of Intellectual Property protection is available in India to 'R' who has developed a new drought-tolerant wheat variety with improved nutritional value? Can he seek a Patent, or must he approach a different regime?

R — RULE

The following legal provisions govern:

1. **Patents Act, 1970 — Section 3(j):** Plants and animals in whole or any part thereof other than micro-organisms, including seeds, varieties, and species, and essentially biological processes for production or propagation of plants and animals are NOT patentable.
2. **Protection of Plant Varieties and Farmers' Rights (PPVFR) Act, 2001 — Section 14:** A new variety shall be registered if it conforms to the criteria of Novelty, Distinctiveness, Uniformity, and Stability (NDUS).
3. The PPVFR Act 2001 was enacted specifically to protect plant breeders' rights while simultaneously safeguarding farmers' rights — consistent with India's obligations under UPOV Convention and CBD.

🟡 **CRITICAL RULE:** Plant varieties CANNOT be patented in India (Section 3(j)). The PPVFR Act 2001 is the CORRECT and ONLY statutory mechanism.

A — APPLICATION

Applying the above rules to the facts:

- 'R' has developed a WHEAT VARIETY — wheat is a plant, clearly covered by Section 3(j) exclusion from patents.
- The variety is drought-tolerant and has improved nutritional value — these are value-added traits but DO NOT convert the plant variety into a patentable invention under Indian law.
- However, 'R' may apply for registration under the PPVFR Act, 2001 if the wheat variety satisfies the NDUS test:
 - **NOVELTY:** The variety must not have been sold/made available in India for more than 1 year before filing (or 4 years outside India)

- **DISTINCTNESS:** Must be clearly distinguishable from existing varieties
- **UNIFORMITY:** Must be sufficiently uniform in essential characteristics
- **STABILITY:** Essential characteristics must remain stable after repeated propagation

If all four criteria are met, 'R' can register as the 'breeder' under PPVFR Act and obtain exclusive commercial rights over the variety for 15 years (or 18 years for trees/vines).

¶ Monsanto Technology LLC v. Nuziveedu Seeds Ltd. (2018) SC — Confirmed that plant varieties fall under PPVFR Act; patent over plant variety-related technology rejected as contrary to Section 3(j).

C — CONCLUSION

ADVICE TO 'R':

✓ File an application for registration under the Protection of Plant Varieties and Farmers' Rights Act, 2001 before the Plant Varieties Protection Authority of India.

✗ A patent application under the Patents Act, 1970 will be REFUSED under Section 3(j) as wheat is a plant variety.

NOTE: If 'R' has used any novel micro-organisms or genetically modified techniques in the process of developing the variety (not the plant itself), those process elements could potentially be explored for patent protection separately — but the variety itself is exclusively under PPVFR.

■ **FINAL ANSWER:** PPVFR Act 2001 is the correct regime. 'R' must register the variety and prove NDUS criteria. He will receive Breeder's Rights for 15 years with exclusive commercial exploitation.

C2. Problem: Registration of GI for Obscene Matter — Is it Permissible?

(Based on November 2022, Q16: 'A' applied for registration of geographical indication of a matter which is obscene. Can 'A' register this GI?)

I — ISSUE

Whether 'A' can register a Geographical Indication (GI) for a matter that is obscene in nature — i.e., does Indian law permit registration of an obscene GI?

R — RULE

The Geographical Indications of Goods (Registration and Protection) Act, 1999 governs GI registration in India. Section 9 sets out absolute grounds for refusal of GI registration:

- ▶ Section 9(a): GI shall not be registered if its use would likely deceive or cause confusion
- ▶ Section 9(b): If its use would be contrary to any law for the time being in force
- ▶ Section 9(c): If it contains or comprises any SCANDALOUS or OBSCENE MATTER — registration is PROHIBITED
- ▶ Section 9(d): If it contains any matter that would hurt the religious sensibilities of any class or section of citizens

■ **ABSOLUTE GROUND:** Section 9(c) GI Act, 1999 — A GI shall NOT be registered if it contains scandalous or obscene matter. This is an absolute prohibition — no exceptions.

Compare: Section 9(4) Trade Marks Act, 1999 similarly prohibits registration of trademarks containing scandalous/obscene matter. The legislative intent across IP statutes is consistent — no obscene IP registration.

A — APPLICATION

On the facts: 'A' has applied for registration of a GI for a matter which is described as 'obscene'. Applying Section 9(c) GI Act, 1999:

- The application involves obscene matter — this falls squarely within the absolute prohibition under Section 9(c)
- The Registrar of Geographical Indications is duty-bound to REFUSE registration
- There is NO discretion available to the Registrar to allow registration of an obscene GI — it is an absolute bar, not a relative ground
- Additionally, such matter may also be contrary to 'any law in force' (Section 9(b)) — e.g., the Obscene Publications Act or IPC Section 292, invoking a second ground of refusal

⚖️ *Zippo Manufacturing v. Zippo Dot Com (analogous principle) — Courts consistently refuse to extend IP protection to material that is offensive or contrary to public policy.*

C — CONCLUSION

'A' CANNOT register the Geographical Indication.

The Registrar of GI must refuse the application under Section 9(c) of the Geographical Indications of Goods (Registration and Protection) Act, 1999, as the matter is obscene. This is an absolute ground for refusal and admits of no exception.

■ **FINAL ANSWER:** Registration REFUSED under Section 9(c) GI Act, 1999. Scandalous/obscene GIs are absolutely prohibited. No discretion. No appeal can succeed on the merits if the matter is obscene.

QUICK REVISION SHEET — UNIT I

Key Numbers

Act / Treaty	Year & Key Number
GI Act India	1999 10-year term Sec 9(c) = obscene bar
PPVFR Act	2001 15 yrs crops / 18 yrs trees NDUS criteria
SICLD Act (IC Layouts)	2000 10-year term Original layout
Patents Act	1970 20 yrs Sec 3(j) = plants excluded
Copyright Act	1957 Life+60 yrs Sec 2(ffc) = software
Trade Marks Act	1999 10 yrs renewable Sec 9(4) = obscene bar
Designs Act	2000 10 yrs+5 yrs New & original
TRIPS Agreement	1994 WTO framework Arts 22-24 = GI
Paris Convention	1883 Industrial property
Berne Convention	1886 Literary/artistic No registration
First India GI Tag	Darjeeling Tea — 2004
TKDL	2001 900+ formulations Counters bio-piracy

Top Cases — One-Liner

- Novartis v. Union of India (2013): Sec 3(d) Patents Act upheld; public health > patent monopoly
- Monsanto v. Nuziveedu (2018 SC): Plant varieties → PPVFR Act, NOT Patents Act (Sec 3(j))
- Thaler v. Vidal (USA 2022): AI cannot be named inventor; only humans hold IP rights
- Turmeric Patent (USPTO 1997): Revoked — India proved TK prior art via Sanskrit texts
- Neem Patent (EPO 2000): Revoked — India's GRTK successfully challenged bio-piracy
- Scotch Whisky v. Golden Bottling (Delhi HC 2006): GI name cannot be misused outside geographic origin

Memory Mnemonics

FORMS OF IP: 'PCT-GC + BIGAPC'

- P = Patents | C = Copyright | T = Trademarks | G = GI | C = Copyright-related (Neighbouring)
- B = Biotechnology | I = Integrated Circuits | G = Genetic Resources/TK | A = AI | P = Plant Varieties | C = Computer Programmes

PLANT VARIETY CRITERIA: 'NDUS' = New, Distinct, Uniform, Stable (ALL 4 required)

GI ABSOLUTE BARS (Sec 9): 'DCOS' = Deceptive, Contrary to law, Obscene/Scandalous, Sensitive (religious)

 **SIGNIFICANCE OF IP: 'RECIPE' = Reward creators, Encourage disclosure, Consumer protection, Incentivise innovation, Preserve culture, Economic growth**

Exam TRAP Questions

- ▶ TRAP: 'Can a GI be owned by an individual?' → NO. GI is a COLLECTIVE right of producers in a region.
- ▶ TRAP: 'Can AI own copyright?' → NO. Only human authors hold IP. AI is a tool.
- ▶ TRAP: 'Can a plant variety be patented in India?' → NO. Sec 3(j) excludes it. Use PPVFR Act 2001.
- ▶ TRAP: 'Is registration mandatory for copyright?' → NO. Copyright is automatic on creation.
- ▶ TRAP: 'Can a GI be registered if it is the generic name for goods?' → NO. Generic names cannot be GI.
- ▶ TRAP: 'Does a GI expire?' → NO. Renewals are available every 10 years indefinitely.
- ▶ TRAP: 'Is software patentable in India?' → Per se NO (Sec 3(k)). But if it produces a 'technical effect' → possibly yes (controversial).

Unit I — Star Ratings Summary

Topic	Part	Rating
Geographical Indication	A	★★★★★
IPR in Biotechnology / Plant Varieties	A	★★★★★
Meaning & Classification of IP	A	★★★★★
Importance of IP Laws / Forms of IPR	B	★★★★★
Emerging vs Conventional IP	B	★★★★★
Plant Variety — PPVFR Problem	C	★★★★★
Computer Programmes & AI	A	★★★★★
GRTK / Traditional Knowledge	A	★★★★★
Significance & Need for IP	A	★★★★★
GI — Obscene Matter Problem	C	★★★
Integrated Circuit Layout Designs	A	★★★

— END OF UNIT I —

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